

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Michael Talisayan	Team: Squad #11	CCRB Case #: 202306570	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Tuesday, 06/20/2023 10:40 AM, Tuesday, 06/20/2023 8:24 PM, Tuesday, 06/20/2023 11:35 PM, Wednesday, 06/21/2023 1:35 AM	Location of Incident: § 87(2)(b) Police Service Area 4 stationhouse; En route to § 87(2)(b) Center	18 Mo. SOL 12/20/2024	Precinct: 09		
Date/Time CV Reported Tue, 07/18/2023 9:41 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 07/18/2023 9:41 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. An officer			
2. PO Jonhattan Rodriguezramos	18367	968103	PSA 4
3. PO Jalal Ali	10928	960147	PSA 4

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Arif Deonarine	27215	971901	PSA 4
2. PO Estrella Cespedes	17276	967807	PSA 4

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Jalal Ali	Force: On June 20, 2023, at § 87(2)(b) in Manhattan, Police Officer Jalal Ali used physical force against § 87(2)(b)	A . Unfounded
B . An officer	Abuse: On June 20, 2023, at the Police Service Area 4 stationhouse, an officer forcibly removed § 87(2)(b) to the hospital.	B . Within NYPD Guidelines
C . PO Jonhattan Rodriguezramos	Abuse: On June 20, 2023, en route to § 87(2)(b) Center, Officer Jonhattan Rodriguez-Ramos refused to provide his name to § 87(2)(b)	C . Substantiated
D . PO Jonhattan Rodriguezramos	Abuse: On June 20, 2023, en route to § 87(2)(b) Center, Police Officer Jonhattan Rodriguez-Ramos refused to provide his shield number to § 87(2)(b)	D . Substantiated
E . PO Jonhattan Rodriguezramos	Abuse: On June 20, 2023, en route to § 87(2)(b) Center, Police Officer Jonhattan Rodriguezramos failed to provide § 87(2)(b) with a business card.	E . Substantiated
F . PO Jonhattan Rodriguezramos	Discourtesy: On June 21, 2023, en route to the Police Service Area 4 stationhouse, Police Officer Jonhattan Rodriguezramos spoke discourteously to § 87(2)(b)	F . Substantiated
G . PO Jonhattan Rodriguezramos	Off. Language: On June 21, 2023, en route to the Police Service Area 4 stationhouse, Police Officer Jonhattan Rodriguezramos made offensive remarks to § 87(2)(b) based on her perceived mental health.	G . Substantiated
H . PO Jonhattan Rodriguezramos	Discourtesy: On June 21, 2023, en route to the Police Service Area 4 stationhouse, Police Officer Jonhattan Rodriguezramos spoke discourteously to § 87(2)(b)	H . Substantiated

Case Summary

On July 18, 2023, § 87(2)(b) filed this complaint after providing a verified statement in CCRB case § 87(2)(b).

On June 20, 2023, at approximately 8:24 p.m., PO Jalal Ali of Police Service Area (PSA) 4 arrested § 87(2)(b) outside § 87(2)(b) in Manhattan for having an outstanding arrest warrant. PO Ali allegedly pushed § 87(2)(b) inside the vehicle (**Allegation A: Force, Unfounded**).

At the PSA 4 stationhouse, in the holding cell, § 87(2)(b) without being prompted to do so, removed all her clothing, exposing herself. An unidentified officer had § 87(2)(b) removed to the hospital for an evaluation (**Allegation B: Abuse of Authority, Within NYPD Guidelines**).

En route to § 87(2)(b) Center, at approximately 11:35 p.m., § 87(2)(b) asked PO Jonhattan Rodriguez-Ramos for his name, shield number, and business card. PO Rodriguez-Ramos did not provide the information requested (**Allegations C, D, and E: Abuse of Authority, Substantiated**).

On June 21, 2023, at approximately 1:35 a.m., PO Rodriguez-Ramos escorted § 87(2)(b) to a marked police vehicle for transport back to the PSA 4 stationhouse. After placing § 87(2)(b) in the vehicle, PO Rodriguez-Ramos told § 87(2)(b) that she stinks (**Allegation F: Discourtesy, Substantiated**). § 87(2)(b) told PO Rodriguez-Ramos that he needed medication. PO Rodriguez-Ramos replied, “You sure I’m the one that needs medication?” (**Allegation G: Offensive Language, Substantiated and Allegation H: Discourtesy, Substantiated**).

The investigation received body-worn camera (BWC) footage from the following officers: PO Deonarine, PO Ali, PO Estrella, and PO Rodriguez-Ramos.

§ 87(2)(b) was arrested for contempt of court [**Board Review 02**].

Findings and Recommendations

Allegation (A) Force: On June 20, 2023, at § 87(2)(b) in Manhattan, Police Officer Jalal Ali used physical force against § 87(2)(b)

BWC footage from PO Ali [**Board Review 03**] depicts him informing § 87(2)(b) at 07:24 of the video footage that there is a warrant for her arrest for violating an order of protection. At 08:40, PO Ali escorts § 87(2)(b) to the police vehicle. At 08:49, PO Ali opens the right rear passenger side door for her. § 87(2)(b) sits inside the vehicle on her own and without the assistance of PO Ali. The footage does not show PO Ali pushing § 87(2)(b) inside the vehicle.

§ 87(2)(b) testified that PO Ali pushed her into the vehicle. [**Board Review 04**].

Due to comprehensive BWC footage, the investigation did not deem it necessary to interview PO Ali.

§ 87(2)(g) footage does not capture PO Ali pushing § 87(2)(b) as alleged, it is recommended that **Allegation A** be closed as **Unfounded**.

Allegation (B) Abuse of Authority: On June 20, 2023, at the Police Service Area 4 stationhouse, an officer forcibly removed § 87(2)(b) to the hospital.

BWC footage from PO Cespedes captures her attempting to search § 87(2)(b) as she is being placed inside of a holding cell. At 04:51, § 87(2)(b) tells PO Cespedes that she wants her to “check everything.” At 05:33, § 87(2)(b) removes her sweatshirt without being requested to do so. PO Cespedes asks § 87(2)(b) to remove her socks. At 05:41, § 87(2)(b) removes her bra. At 05:49, § 87(2)(b) removes her pants and underwear. PO Cespedes asks § 87(2)(b) if she wants to go to the hospital. At 06:09, § 87(2)(b) with her body bent over, shows PO Cespedes her buttocks and says, “You want to check my pussy too?”

You dumb bitch?” From 06:24 to 06:29, § 87(2)(b) raises her right leg and asks PO Cespedes, “Bitch, you want me to put my finger in the pussy?” [Board Review 05].

§ 87(2)(b) statement was largely consistent with PO Cespedes’ BWC footage, with the following exceptions. PO Cespedes told § 87(2)(b) that she needed to check § 87(2)(b) buttocks and vagina. One of the officers requested an ambulance for § 87(2)(b) for getting naked in the holding cell. § 87(2)(b) was transported to § 87(2)(b) Center for an evaluation and was discharged within an hour [Board Review 04].

§ 87(2)(b) declined to sign and return HIPAA forms. Therefore, the investigation was unable to obtain medical records related to this incident.

Medical Treatment of Prisoner Report # § 87(2)(b) prepared by PO Deonarine indicates that § 87(2)(b) was transported to § 87(2)(b) Center at 11:56 p.m. and seen by § 87(2)(b). It is also noted “Yes” under “Prisoner Requests/Requires Medical Aid.” Under “Remarks,” the following is noted, “pt psychologically [sic]” [Board Review 06].

Due to the BWC footage capturing § 87(2)(b) behavior in the holding cell, the investigation did not deem it necessary to interview PO Cespedes.

NYPD Patrol Guide Procedure 210-04 provides guidelines for obtaining medical and psychiatric treatment for prisoners in police custody. Prisoners requiring psychiatric treatment is defined as an emotionally disturbed prisoner, who has attempted suicide, is extremely violent, or exhibits other irrational behavior. It is noted that when a prisoner in custody requires a medical/psychiatric treatment that an ambulance should be requested and the prisoner removed to a hospital directly from place of arrest, if necessary [Board Review 07].

In BWC footage, § 87(2)(b) § 87(2)(g) removed her clothes and asked PO Cespedes to conduct an invasive search of her person. § 87(2)(g)

It is recommended that Allegation B be closed as Within NYPD Guidelines.

Allegation (C) Abuse of Authority: On June 20, 2023, en route to § 87(2)(b) Center, Officer Jonhattan Rodriguez-Ramos refused to provide his name to § 87(2)(b)

Allegation (D) Abuse of Authority: On June 20, 2023, en route to § 87(2)(b) Center, Police Officer Jonhattan Rodriguez-Ramos refused to provide his shield number to § 87(2)(b)

Allegation (E) Abuse of Authority: On June 20, 2023, en route to § 87(2)(b) Center, Police Officer Jonhattan Rodriguez-Ramos failed to provide § 87(2)(b) with a business card.

BWC footage from PO Rodriguez-Ramos [Board Review 08] captures § 87(2)(b) asking Rodriguez-Ramos for his name while he is speaking on the radio at 02:32. At 03:41, § 87(2)(b) says to PO Rodriguez-Ramos, “All I want is your badge number and your motherfucking name – and a card. At 03:48, PO Rodriguez-Ramos says, “You’re under arrest. You don’t have to talk to me, and I don’t have to hear what you have to say.” PO Rodriguez-Ramos does not provide the requested information to § 87(2)(b) in the remainder of the footage.

On December 19, 2023, PO Rodriguez-Ramos was initially interviewed by the CCRB. PO Rodriguez-Ramos, who had reviewed his BWC footage prior to going on the record, confirmed that § 87(2)(b) asked for his name and shield number. During the incident, however, he was not aware of her asking for that information because he tried to not listen to what she was saying as she was verbally abusive. PO Rodriguez-Ramos reviewed his BWC footage during his interview as well [Board Review 08, timestamps 02:27 to 03:37]. PO Rodriguez-Ramos stated he provided his name and shield number to § 87(2)(b) at the hospital. He did not know what led him to provide name and shield number to § 87(2)(b) [Board Review 09].

On January 12, 2024, PO Rodriguez-Ramos was interviewed a second time by the CCRB [Board Review 10]. PO Rodriguez-Ramos did not recall § 87(2)(b) asking for his business card. During this interview, PO Rodriguez-Ramos was presented with his BWC footage. PO Rodriguez-Ramos heard § 87(2)(b) ask for his name and shield number. He could not understand the last part of her statement. When asked whether PO Rodriguez-Ramos heard § 87(2)(b) ask for a business card, PO Rodriguez-Ramos stated that it did not sound like she said the word “card” [Board Review 08, timestamps 03:44 to 03:50].

NYPD Administrative Guide 304-11 indicates that uniformed members of the service must courteously and clearly state their rank, name, shield number, and command, or otherwise provide them, to anyone who requests they do so [Board Review 11].

NYC Administrative Code Section 14-174 indicates that, notwithstanding the provisions of subdivision B, an officer shall offer a business card to any person requesting identifying information, or provide such information verbally to such person and allow such person sufficient time to record such information when such officer does not have an adequate number of pre-printed business cards or hand-written cards on his or her person at the time of such law enforcement activity [Board Review 12].

As captured in BWC footage, § 87(2)(b) requests PO Rodriguez-Ramos’ name, shield number and business card. § 87(2)(g)

§ 87(2)(b) In BWC footage, PO Rodriguez-Ramos even acknowledges the request by saying that he did not have to listen to what § 87(2)(b) was saying as she was under arrest. § 87(2)(g)

§ 87(2)(b) It is recommended that Allegations C, D, and E be Substantiated.

Allegation (H) Discourtesy: On June 21, 2023, en route to the Police Service Area 4 stationhouse, Police Officer Jonhattan Rodriguez-Ramos spoke discourteously to § 87(2)(b).

Allegation (I) Offensive Language: On June 21, 2023, en route to the Police Service Area 4 stationhouse, Police Officer Jonhattan Rodriguez-Ramos made offensive remarks to § 87(2)(b) based on her perceived mental health.

Allegation (J) Discourtesy: On June 21, 2023, en route to the Police Service Area 4 stationhouse, Police Officer Jonhattan Rodriguez-Ramos spoke discourteously to § 87(2)(b).

BWC footage from PO Rodriguez-Ramos (video 2) [Board Review 15] captures PO Rodriguez-Ramos securing § 87(2)(b) in the rear of a marked vehicle. At 03:40, § 87(2)(b) states, “You huggin’ me and shit!” PO Rodriguez-Ramos says that he is putting a seatbelt on her. § 87(2)(b) says, “I don’t give a fuck! You stink!” At 03:43, PO Rodriguez-Ramos replies, “No, you stink.” At 05:40, § 87(2)(b) tells PO Rodriguez-Ramos that he needs medication. At 05:44, PO Rodriguez-Ramos says, “You sure I’m the one that needs medication?”

§ 87(2)(b) did not allege that PO Rodriguez-Ramos made comments about her body odor or her mental health [Board Review 04].

PO Rodriguez-Ramos testified that § 87(2)(b) made derogatory statements to him and told him that he stunk. PO Rodriguez-Ramos told § 87(2)(b) that she stinks because the word slipped and it was out of frustration. PO Rodriguez-Ramos acknowledged asking § 87(2)(b)

